

File No.: EXP202203951

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 03/03/2022, a document was submitted to this Spanish Agency for Data Protection by A.A.A. (hereinafter, the complainant), in which a complaint is made against XCOM DIGITAL LAB, S.L. with NIF B67371716 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The reasons on which the complaint is based are as follows:

"I am completely unaware of this company, I have never worked with them nor do I have any type of commercial relationship. I do not know how they obtained my email address or who provided it to them. I have already received the fourth commercial email today with the same message as the previous three, for which I have requested my unsubscribe three times by addressing the email indicated for that purpose, and they continue to send and ignore my request."

Attached is the following documentation:

- Copy of the emails exchanged between the parties, dated 06/11/2018, 20/09/2019, 24/07/2019, and 03/03/2022, where the complainant requests to unsubscribe on three occasions and the response from the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on 08/04/2022, the aforementioned complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was delivered on 08/04/2022, as stated in the certificate in the file.

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This Agency received a response document on 10/05/2022 in which the following is stated:

"Indeed, we sent an email to ***EMAIL.1. We are a digital services company and contacted the company Hermes Integral to seek collaboration avenues to offer the digital kit to their clients. We are interested in management companies.

For this, we used the contact email provided on their website (...). We do not have any personal data stored from Hermes Digital, nor do we even have their email stored. It was used for this contact.

It is clear that we will not contact them again."

On 11/05/2022, this Agency informed the respondent that the documentation they claimed to have provided was not received along with the response; notification was made on the same day by electronic means. To date, no response has been received.

THIRD: On 03/06/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On 29/07/2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 21 of the LSSI,

classified in Article 38.4.d) of the LSSI.

FIFTH: An attempt to notify via postal mail was made, which resulted in "Returned to sender due to Unknown" on 10/08/2022. Thus, the notification was made through an announcement published in the Official State Gazette on 22/08/2022, granting a hearing period of ten working days for the respondent to make allegations and present any evidence they deem appropriate, in accordance with the provisions of Articles 73 and 76 of the LPACAP.

SIXTH: After the period granted for making allegations, it has been confirmed that no allegations have been received from the respondent.

SEVENTH: On 30/03/2023, the instructing body made a proposal for resolution in which it proposed to sanction the respondent with a fine of €800 for the infringement of Article 21 of the LSSI.

EIGHTH: The proposal for resolution was notified to the respondent on 13/04/2023 in accordance with the rules established in the LPACAP. After the period granted for making allegations, it has been confirmed that no allegations have been received from the respondent.

In view of all that has been acted upon by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven,

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PROVEN FACTS

FIRST: On 06/11/2018, 24/07/2019, and 20/09/2019, the claimant received three emails from the address ***EMAIL.2 containing commercial content, offering website creation services. On those same dates, the claimant responded (***EMAIL.1) and requested the deletion of their personal data from the database.

SECOND: On 03/03/2022, at 12:36 hours, the claimant received a commercial electronic communication from the address ***EMAIL.2. The content is as follows:

"Good morning,

I am a contact from Xwebs and would like to provide you with information about our website development method so that you can keep us in mind when you need it.

Our 20 years of experience combined with the application of current technology allows us to create optimal websites:

1. We guarantee that we will create your website in 4-5 days.
2. A website that meets your needs.
3. For a cost of 390 Euros.
4. A website adapted to all devices (mobile phones, tablets, laptops, and computers).
5. You will have access to an administrator to manage the entire website.

We apply the same method to the development of Landing Pages aimed at results for your lead generation actions and for the creation of eCommerce. If you want more information, you can visit xwebs.es, contact me at this email, by phone, or if you prefer via the website chat.

Regards,
B.B.B.

THIRD: The defendant states that they obtained the claimant's personal email data from the website ***URL.1, but that they do not have any data from Hermes digital stored. They indicate that they will not contact again.

FOURTH: This Agency has notified the defendant entity of the proposed resolution of this sanctioning procedure, but they have not submitted any allegations or evidence contradicting the reported facts.

LEGAL GROUNDS

I

Competence and applicable regulations

According to the provisions of Article 43.1 of the LSSI and as established in Articles 47, 48.1, 64.2, and

68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Article 21 of the LSSI

Article 21 "Prohibition of commercial communications made via email or equivalent electronic communication means" of the LSSI establishes:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of their own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited."

As established in the second point of the "Proven Facts" section, the email received by the claimant is considered a commercial electronic communication from the moment services for website creation from the defendant entity are offered; without the claimant having previously requested them.

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It should be noted that, in relation to the three emails received previously, they have expired after 6 months from the receipt of these and the filing of the complaint.

Therefore, in accordance with the evidence available at this time of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the complained party, for violation of Article 21 of the LSSI.

III

Classification and sanction of the infringement of Article 21 of the LSSI

The aforementioned infringement of Article 21 of the LSSI constitutes the commission of the infringement classified as minor in Article 38.4.d) of the LSSI, which qualifies as such "The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and do not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000, with the criteria for their graduation established in Article 40 of the same regulation, which states the following:

"The amount of the fines imposed will be graduated according to the following criteria:

a) The existence of intent.

b) The period of time during which the infringement has been committed.

- c) The recurrence of the commission of infringements of the same nature, when declared by a firm resolution.
- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infringement.
- f) The volume of billing affected by the committed infringement.
- g) Adherence to a code of conduct or to a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities."

In accordance with the criteria established in this Law, it is deemed appropriate to impose an administrative fine of €800 for the infringement of Article 21 of the LSSI.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on XCOM DIGITAL LAB, S.L., with NIF B67371716, for an infringement of Article 21 of the LSSI, classified in Article 38.4.d) of the LSSI, a fine of €800 (eight hundred euros).

SECOND: TO NOTIFY this resolution to XCOM DIGITAL LAB, S.L.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

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web/], or through any of the other registers provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The Agency must also be provided with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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